

An Act

ENROLLED HOUSE
BILL NO. 3940

By: West (Josh) of the House

and

Hines of the Senate

An Act relating to the Oklahoma National Guard; prohibiting certain compensation except in certain situations; requiring certain compensation to be equivalent to certain member; requiring compensation to be provided by the Oklahoma National Guard Supplemental Retention Pay Revolving Fund; amending 44 O.S. 2021, Sections 26, as amended by Section 4, Chapter 344, O.S.L. 2025, and 27 (44 O.S. Supp. 2025, Section 26), which relate to the Military Department of the State of Oklahoma; allowing certain bequests to be defined by the Adjutant General in certain situations; removing requirement for Adjutant General to be paid certain amount; amending 44 O.S. 2021, Sections 235 and 235.1, which relate to the Oklahoma National Guard Museum; removing certain requirement for certain location of Military Department of the State of Oklahoma; removing certain allowance of leasing of certain association; allowing Executive Director to establish gift shop; allowing proceeds from gift shop to be deposited into the Oklahoma National Guard Museum Revolving Fund; allowing the Oklahoma National Guard Museum Revolving Fund to be for the Military Department of the State of Oklahoma; allowing certain proceeds to be deposited into fund; amending 44 O.S. 2021, Section 243, as amended by Section 6, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025, Section 243), which relates to rules and regulations; removing certain requirement that certain members be considered part of state military forces; removing certain requirement that certain persons be subject to Oklahoma Uniform Code of Military Justice; removing certain requirement that certain employee receive certain compensations; amending Sections 18 and 19, Chapter 344, O.S.L. 2025

(44 O.S. Supp. 2025, Sections 271 and 272), which relate to operative date and Oklahoma National Guard Supplemental Retirement Pay Revolving Fund; requiring certain persons to have served certain number of years in the Oklahoma National Guard to receive certain benefits; describing certain persons as qualified members; exempting certain persons from certain provisions if persons are receiving certain funds; requiring certain amount to be determined based on total points accrued; renaming certain fund; amending 44 O.S. 2021, Section 815, as amended by Section 7, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025, Section 815), which relates to voting and rulings; removing certain requirement that certain reduction in pay be done by person with certain authority of such lower pay grade; requiring certain member to provide certain response within certain time period if on active duty; amending Section 1, Chapter 390, O.S.L. 2025 (70 O.S. Supp. 2025, Section 14-140), which relates to the Oklahoma National Guard CareerTech Assistance Act; renaming certain act; removing certain eligibility requirements; updating statutory references; updating statutory language; allowing certain qualifying member to transfer certain benefits; allowing the Adjutant General to promulgate rules; requiring certain criteria to be met to transfer certain benefits; allowing spouse of certain qualifying member to use certain benefits in certain situations; allowing certain dependent child of certain qualifying member to use certain benefits in certain situations; providing for recodification; providing for codification; and providing an effective date.

SUBJECT: Oklahoma National Guard

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 21.2 of Title 44, unless there is created a duplication in numbering, reads as follows:

As applicable to the procedure for the enlistment, organization, pay, maintenance, equipment, and disciplining of such forces, such compensation shall be in conformity with the law and the rules and regulations governing and pertaining to the Oklahoma National Guard; provided, that the officers and enlisted personnel in the Oklahoma State Guard shall not receive any compensation or monetary allowances from the state except when activated for state active duty, as defined in Section 801 of Title 44 of the Oklahoma Statutes, by order of the Governor. Any full-time state employee who serves in a military capacity shall receive compensation equivalent to the compensation, benefits, entitlements, or other compensation received by a full-time active-duty service member at the same rank and time in grade for the same duration. Compensation received pursuant to this section shall be funded by the Oklahoma National Guard Supplemental Retention Pay Revolving Fund established pursuant to Section 272 of Title 44 of the Oklahoma Statutes or any other funds appropriated.

SECTION 2. AMENDATORY 44 O.S. 2021, Section 26, as amended by Section 4, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025, Section 26), is amended to read as follows:

Section 26. A. The Adjutant General shall be in control of the Military Department of the State of Oklahoma, subordinate only to the Governor. Within the limitations and under the provisions of law, he or she shall supervise and direct the Oklahoma National Guard within the service of the state and when under state control in all of its organization, training and other activities; shall receive and give effect to the orders of the Governor; and shall perform such other military and defense duties, not otherwise assigned by law, as the Governor may prescribe. The Adjutant General shall have the authority to arm members of the state military forces on military installations and other places under the control of the Military Department of the State of Oklahoma with weaponry as the Adjutant General deems necessary to adequately provide for the security of the facilities and their occupants.

B. The Adjutant General, when absent from the state, may temporarily delegate any authority vested under this title and any such duties as an agency appointing authority to an Assistant Adjutant General, other state officer or employee within the Military Department of the State of Oklahoma. Such temporary delegations of authority pursuant to this subsection shall be accomplished in writing. The Adjutant General may also promulgate regulations providing for the delegation of any such authority.

C. The Adjutant General shall develop, publish and maintain an organizational chart depicting the chain of command between the Adjutant General and the major commands of the Oklahoma National Guard. Besides the major commands defined in Section 801 of this title ~~(Article 1)~~, the Adjutant General, in his or her discretion, may designate other military units within the Oklahoma National Guard as major commands.

D. The organizational chart required in subsection C of this section shall be updated no less than annually and shall include all enlisted and officer billets assigned to joint ~~forces~~ force headquarters and shall depict all existing command relationships established by the Adjutant General within joint ~~forces~~ force headquarters. The organizational chart required herein shall not be considered a military publication within the meaning of Section 801 of this title ~~(Article 1)~~.

E. In accordance with all relevant requirements of the United States Army, the United States Air Force or the National Guard Bureau, the Adjutant General shall develop, publish and maintain an enlisted and officer rating scheme for all enlisted and officer billets assigned to joint ~~forces~~ force headquarters. The rating scheme required herein shall not be considered a military publication within the meaning of Section 801 of this title ~~(Article 1)~~.

F. Pursuant to the rules established by the Adjutant General, the Military Department of the State of Oklahoma is authorized to expend appropriated and nonappropriated funds to enhance recruiting and retention efforts for the Oklahoma National Guard.

G. The Adjutant General may establish rules allowing the Military Department of the State of Oklahoma to accept donations and bequests to create a program for the benefit of members of the Oklahoma National Guard. The purpose of any bequests may be redefined by the Adjutant General in the event the original purpose is covered by some other section of law or source of funding.

H. The Adjutant General shall serve as the chief of all fire protection units operating under the ~~Oklahoma~~ Military Department of the State of Oklahoma and shall supervise and administer the fire protection units in accordance with the rules and procedures prescribed by the Military Department of the State of Oklahoma.

I. The Adjutant General shall serve as the ~~chief commissioner~~ of all police units and officers appointed under the ~~Oklahoma Military Department of the State of Oklahoma~~. The Adjutant General may appoint police officers in accordance with Section 230 of this title.

SECTION 3. AMENDATORY 44 O.S. 2021, Section 27, is amended to read as follows:

Section 27. The ~~Adjutant General and~~ Assistant Adjutants General shall be paid a sum equivalent to the pay of ~~his/her~~ his or her federally recognized rank, exclusive of allowances. Other officers and enlisted ~~men~~ persons and employees of the Department shall be paid in amounts fixed by the Adjutant General and within amounts appropriated for ~~that~~ such purpose.

SECTION 4. AMENDATORY 44 O.S. 2021, Section 235, is amended to read as follows:

Section 235. There is hereby created the Oklahoma National Guard Museum, to be under the supervision of the Adjutant General. The Adjutant General may appoint an Executive Director to oversee the daily operations and maintenance of the museum and perform other duties as requested by the Adjutant General. Appropriate state agencies are directed to make available, for display of items of historical significance and necessary space for administration, ~~the buildings presently occupied by the Oklahoma Military Department, located in the vicinity of 36th Street and North Eastern in Oklahoma City, Oklahoma. The building herein referred to shall be made available by the Adjutant General as soon as same is no longer needed by and is vacated by the Oklahoma Military Department~~ the Oklahoma National Guard Museum building located at 3301 Northeast Grand Boulevard in Oklahoma City. The Executive Director, subject to the approval of the Adjutant General, ~~may lease to the 45th Infantry Division Association, for periods not exceeding one (1) year and with provisions for renewal from year to year, an area to be used as a gift shop, if the lease does not interfere with its use by the Oklahoma National Guard Museum~~ establish a gift shop in a designated area of the Oklahoma National Guard Museum. The proceeds of the sales from the gift shop shall ~~remain with the 45th Infantry Division Association for operating purposes~~ be deposited in the Oklahoma National Guard Museum Revolving Fund established pursuant to Section 235.1 of this title.

SECTION 5. AMENDATORY 44 O.S. 2021, Section 235.1, is amended to read as follows:

Section 235.1. There is hereby created in the State Treasury a ~~special revolving fund for the Military Department of the State of Oklahoma~~ to be known as the "Oklahoma National Guard Museum Revolving Fund", which fund shall consist of donations received for operation and maintenance of the museum ~~and, proceeds from the rental of the museum event center,~~ monies received from the sale of Armed Forces Veterans Motorcycle License Plates and Global War on Terrorism License Plates pursuant to Section 1135.5 of Title 47 of the Oklahoma Statutes, and proceeds from sales in the Oklahoma National Guard Museum gift shop. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall be under the administrative direction of the ~~Oklahoma~~ State of Oklahoma Military Department of the State of Oklahoma. Expenditures from the fund created by this section shall be used exclusively for expenses of operation and maintenance of the Oklahoma National Guard Museum and shall be made pursuant to the laws of this state and without legislative appropriation. Warrants for expenditures from the fund shall be drawn by the State Treasurer, based on claims signed by an authorized employee of the department and approved for payment by the Director of the Office of Management and Enterprise Services.

SECTION 6. AMENDATORY 44 O.S. 2021, Section 243, as amended by Section 6, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025, Section 243), is amended to read as follows:

Section 243. A. The Governor is hereby authorized to prescribe rules and regulations governing the enlistment, organization, administration, equipment, discipline and discharge of the personnel of such military forces; to requisition from the Secretary of Defense such arms and equipment as may be in the possession of and can be spared by the United States Department of Defense and to extend thereto the facilities of state armories, Armed Forces Reserve Centers, readiness centers, logistics, aviation, and training facilities, warehouses and their equipment and such other state premises and property as may be available for the purpose of drill and instruction.

B. ~~Members of the Oklahoma National Guard shall be considered part of state military forces as defined in Section 801 of this title and shall be subject to the Oklahoma Uniform Code of Military Justice.~~

~~C. Any full-time state employee that serves in a military capacity shall receive compensation equaling the compensation, benefits, entitlements, or other compensation received by a full-time active-duty service member at the same rank and time in grade.~~

~~D.~~ When prescribing the rules and regulations governing enlistment, organization, administration, equipment, discipline and discharge of the personnel of the Oklahoma ~~National~~ State Guard, the Governor shall issue such rules and regulations in the form of an executive order or in a series of such orders. An executive order or a series of such orders prescribing the rules and regulations governing enlistment, organization, administration, equipment, discipline and discharge of the personnel of the Oklahoma ~~National~~ State Guard shall also be published by the Adjutant General as a military publication.

SECTION 7. AMENDATORY Section 18, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025, Section 271), is amended to read as follows:

Section 271. A. The provisions of this section shall not be operative and no payments shall be made from the Oklahoma National Guard Supplemental Retirement Pay Revolving Fund created in Section ~~19~~ 272 of this ~~act~~ title until November 1, 2027.

B. The provisions of this section shall only be applicable to a member of the Oklahoma National Guard who has accrued enough service credit ~~prior to the effective date of this act~~ in order to retire from the system maintained by the Defense Finance and Accounting Service, or its successor in interest, for the benefit of members of state ~~National Guards~~ national guards, but who has not attained the required age prior to ~~the effective date of this act~~ November 1, 2025, in order to be paid the full amount of such benefit. No member of the Oklahoma National Guard shall be eligible to receive a payment pursuant to the provisions of this section unless the member has completed twenty-five (25) years of military service, which shall include at least five (5) years in the Oklahoma National Guard, and retires as a member of the Oklahoma National Guard. Such member who qualifies for such benefits pursuant to this section shall be deemed a qualifying member.

C. The provisions of this section shall not be applicable to any person who ~~retires with an active duty military pension is~~ receiving funds pursuant to 10 U.S.C., Section 12732.

D. The amount of the payment shall be determined as follows:

1. Determine the amount of retirement the member would receive if the member had reached the age to accrue federal retirement benefits based upon total points accrued;

2. If the members of the active duty military retirement system were eligible for a cost-of-living adjustment for the year for which the computation of the payment amount authorized by this section is to be made, the cost-of-living adjustment amount in an annualized form shall be added to the result of the computation in paragraph 1 of this subsection each year; and

3. The resulting amount shall be paid to the Oklahoma National Guard member in twelve ~~(12)~~ equal monthly amounts with allowance as required for rounding.

E. Any benefit payable to an eligible member of the Oklahoma National Guard shall only be payable during the member's lifetime, and no benefit authorized pursuant to the provisions of this section shall be payable to a beneficiary other than amounts paid to a member prior to the member's death which are payable to another person pursuant to the provisions of a joint tenancy bank account with a right of survivorship naming a person or persons as beneficiary, a bank account with a transfer on death or payable on death feature, an express trust, including, but not limited to, a trust created by the payee member during his or her lifetime, a will or the statute of intestate succession for distribution of the assets of a person who does not otherwise provide for the disposition of his or her assets after death.

F. The payment otherwise authorized pursuant to the provisions of this ~~act~~ section may only be made to a person who has become eligible to receive retirement benefits from the retirement system under the supervision of the Defense Finance and Accounting Service, or its successor in interest, as of the date the first payment pursuant to this ~~act~~ section is authorized.

G. The payments authorized by this section shall be paid to the eligible member until the member begins to receive federal retirement benefits from the Defense Finance and Accounting Service, or its successor in interest, but shall not be paid for any period of time after such time period.

H. In the event the funds required for full payment to all eligible members pursuant to the provisions of this section are not sufficient, the payments to the eligible members shall be prorated by dividing the total number of eligible members by the total amount of available funds. The resulting quotient shall be multiplied by the payment amount otherwise due to the eligible member and the result of that computation shall be the reduced dollar amount paid to each member for the applicable period. For any period of time during which payments are prorated pursuant to this subsection, the next increment of available funds shall be used to make payments to the eligible members whose payment amounts were prorated to compensate for the reduction made in the prior payment period.

SECTION 8. AMENDATORY Section 19, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025, Section 272), is amended to read as follows:

Section 272. There is hereby created in the State Treasury a revolving fund for the ~~Oklahoma~~ Military Department of the State of Oklahoma to be designated the "Oklahoma National Guard Supplemental ~~Retirement~~ Retention Pay Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the ~~Oklahoma~~ Military Department of the State of Oklahoma from funds provided by law. All monies accruing to the credit of ~~said~~ the fund are hereby appropriated and may be budgeted and expended by the ~~Oklahoma~~ Military Department of the State of Oklahoma for the purpose of implementing the provisions of Section ~~18~~ 271 of this ~~act~~ title. Expenditures from ~~said~~ the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 9. AMENDATORY 44 O.S. 2021, Section 815, as amended by Section 7, Chapter 344, O.S.L. 2025 (44 O.S. Supp. 2025, Section 815), is amended to read as follows:

Section 815. ARTICLE 15. Commanding officer's nonjudicial punishment.

A. Except as provided in subsection B of this section, any commanding officer may impose disciplinary punishments for minor offenses arising under the punitive articles of the Oklahoma Uniform Code of Military Justice without the intervention of a court-martial.

B. Any commanding officer may limit or withhold the exercise of nonjudicial punishment authority by subordinate commanders, including limiting authority over certain categories of military personnel or offenses. Likewise, individual cases may be reserved by a superior commander. A superior authority may limit or withhold any power that a subordinate might otherwise exercise under this section.

C. Except as provided in subsection L of this section, the Governor or Adjutant General may delegate the powers established under this section to a commanding officer who is a member of the state military forces and is also a member of the same force component as the accused.

D. Except as provided in subsection S of this section, any commanding officer may impose upon enlisted members of the officer's command:

1. An admonition;
2. A reprimand;
3. The withholding of privileges for not more than six (6) months, which need not be consecutive;
4. The forfeiture ~~of pay~~ of not more than seven (7) days' pay;
5. A fine ~~of~~ not more than seven (7) days' pay;
6. A reduction to the next inferior pay grade, ~~if the grade from which demoted is within the promotion authority of the officer imposing the reduction or any officer subordinate to the one who imposes the reduction;~~
7. Extra duties, including fatigue or other duties, for not more than fourteen (14) days, which need not be consecutive; and
8. Restriction to certain specified limits, with or without suspension from duty, for not more than fourteen (14) days, which need not be consecutive.

E. Except as provided in subsection S of this section, any commanding officer of the grade of major or above may impose upon enlisted members of the officer's command:

1. An admonition;
2. A reprimand;
3. The withholding of privileges for not more than six (6) months, which need not be consecutive;
4. The forfeiture of not more than one-half (1/2) of one (1) month's pay per month for two (2) months;
5. A fine of not more than one (1) month's pay;
6. A reduction to the lowest or any intermediate pay grade, ~~if the grade from which demoted is within the promotion authority of the commanding officer imposing the reduction or any officer subordinate to the one who imposes the reduction,~~ but an enlisted member in a pay grade above E-4 shall not be reduced more than two pay grades;
7. Extra duties, including fatigue or other duties, for not more than forty-five (45) days, which need not be consecutive; and
8. Restriction to certain specified limits, with or without suspension from duty, for not more than sixty (60) days, which need not be consecutive.

F. The Governor, the Adjutant General, or an officer exercising general or special court-martial convening authority may impose:

1. Upon officers of the officer's command:
 - a. any punishment authorized in subsection E of this section, except for the punishments provided in paragraphs 6 and 7 of subsection E of this section, and
 - b. arrest in quarters for not more than thirty (30) days, which need not be consecutive; and
2. Upon enlisted members of the officer's command, any punishment authorized in subsection E of this section.

Admonitions or reprimands given as nonjudicial punishment to commissioned officers and warrant officers shall be administered in writing. In all other cases, unless otherwise prescribed by

regulations promulgated by the Adjutant General, such punishments may be administered either orally or in writing.

G. Whenever any punishments are combined to run consecutively, the total length of the combined punishment shall not exceed the authorized duration of the longest punishment included in the combination, and there shall be an apportionment of punishments so that no single punishment in the combination exceeds its authorized length under this section.

H. Once the commanding officer has determined that nonjudicial punishment is appropriate, the commanding officer shall provide reasonable notice to the member of his or her intent to impose nonjudicial punishment. At the time the commanding officer provides notification as required in this subsection, the member shall be entitled to examine all statements and other evidence that the commander has examined and intends to rely upon as the basis for punishment. The member shall be provided a copy of the documentary evidence unless it is privileged, classified, or otherwise restricted by law, regulation, or instruction. At the time the commanding officer provides notification as required in this subsection, the commanding officer shall also inform the member as to the quantum of punishment potentially to be imposed. While a member undergoing nonjudicial punishment is not entitled to representation by a duly appointed defense counsel, the member may seek legal advice from any judge advocate available for this purpose. Upon notification by the officer of his or her intent to impose judicial punishment, the member shall provide a response within forty-five (45) calendar days, or three (3) duty days if on active duty.

I. The right to demand trial by court-martial in lieu of nonjudicial punishment shall arise only when arrest in quarters or restriction will be considered as punishments. If the commanding officer determines that arrest in quarters or restriction will be considered as punishments, prior to the offer of nonjudicial punishment the member shall be notified in writing of the right to demand trial by court-martial. Should the commanding officer determine that the punishment options will not include arrest in quarters or restriction, the member shall be notified that there is no right to trial by court-martial in lieu of nonjudicial punishment. Upon notification by the commanding officer of his or her intent to impose nonjudicial punishment that includes arrest in quarters or restriction, the member shall be afforded a reasonable

amount of time to confer with legal counsel and to prepare a response.

J. The commanding officer who imposes the punishment, or his or her successor in command, may at any time suspend, set aside, mitigate or remit any part or amount of the punishment and restore all rights, privileges and property affected. The commanding officer may also mitigate:

1. Reduction in grade to forfeiture of pay;
2. Arrest in quarters to restriction; or
3. Extra duties to restriction.

The mitigated punishment shall not be for a greater period than the punishment mitigated. When mitigating reduction in grade to forfeiture of pay, the amount of the forfeiture shall not be greater than the amount that could have been imposed initially under this ~~article~~ section by the officer who imposed the punishment mitigated.

K. A person punished under this section who considers the punishment unjust or disproportionate to the offense may, through his or her chain of command, appeal to a senior officer designated by the Adjutant General to adjudicate appeals arising from nonjudicial punishment. A senior officer so designated by the Adjutant General shall be a member of the same component of the state military forces as the accused. An appeal made pursuant to this subsection shall be lodged within fifteen (15) calendar days after the punishment is announced to the member. The commanding officer exercising appellate authority may, at his or her discretion, extend the deadline for an appeal. The appeal shall be promptly forwarded and decided, and the member shall not be punished until the appeal is decided. The senior officer designated by the Adjutant General as exercising appellate authority may exercise the same powers with respect to the punishment imposed as may be exercised under subsection I of this section by the officer who imposed the punishment. Before acting on an appeal ~~from~~ for a punishment, the senior officer exercising appellate authority shall refer the case to a judge advocate for consideration and advice. When a senior officer is designated by the Adjutant General to adjudicate appeals arising from nonjudicial punishment, such designation shall be accomplished in writing and shall be considered a military publication, as defined in Section 801 of this title ~~(Article 1)~~.

L. Except for nonjudicial punishment imposed by the Governor or the Adjutant General, the final appellate authority for nonjudicial punishment imposed within state military forces is the Adjutant General. A person punished under this section whose appeal was previously denied by a senior officer designated to adjudicate appeals may, through his or her chain of command, lodge an additional appeal with the Adjutant General within five (5) days after the appeal is denied. In the event the officer imposing nonjudicial punishment is a senior officer who is also designated to adjudicate appeals arising from nonjudicial punishment, an appeal thereof shall be addressed directly to the Adjutant General. In the event the officer imposing nonjudicial punishment is the Adjutant General, an appeal thereof shall be addressed directly to the Governor. An appeal offered pursuant to this subsection shall be made only in writing. Neither the Governor nor the Adjutant General shall delegate his or her duties as an appellate authority under this subsection.

M. Whenever nonjudicial punishment is imposed under this section:

1. After adjudication and while the punishment is being carried out or while the adjudged punishment is pending before the appellate authority, the commander or officer in charge who imposed the nonjudicial punishment, upon the request of the ~~member~~ officer, may:

- a. excuse the ~~member~~ officer from attendance at scheduled unit training assemblies, or
- b. arrange for the ~~member~~ officer to drill on alternate dates and in alternate locations; or

2. If necessary to maintain good order and discipline within the unit, the commanding officer who imposed the nonjudicial punishment may order the member to drill on alternate dates and in alternate locations. The order shall be reduced to writing and shall become part of the record of nonjudicial punishment.

N. The imposition and enforcement of disciplinary punishment under this section for any act or omission shall not be a bar to trial by court-martial or a civilian court of competent jurisdiction for a crime or offense arising out of the same act or omission; but the fact that a disciplinary punishment has been enforced may be demonstrated by the member upon trial and, when so demonstrated, it shall be considered in determining the measure of punishment to be

adjudged in the event of a finding or verdict of guilty. Nonjudicial punishment shall not be imposed for an offense previously tried by a civilian court unless so authorized by regulations promulgated by the Adjutant General.

O. When nonjudicial punishment has been imposed for an offense, punishment shall not again be imposed for the same offense under this section. Once nonjudicial punishment has been imposed, it may not be increased, upon appeal or otherwise. When a commanding officer determines that nonjudicial punishment is appropriate for a particular member, all known offenses determined to be appropriate for disposition by nonjudicial punishment and ready to be considered at that time, including all offenses arising from a single incident or course of conduct, shall be considered together and shall not be made the basis for multiple punishments. This subsection shall in no way restrict the right of a commanding officer to prefer court-martial charges for an offense previously punished under the provisions of this section.

P. In accordance with subsection B of Section 843 of this title ~~(Article 43, subsection B)~~, a person accused of an offense is not liable to be punished under this section if the offense was committed more than two (2) years before the imposition of punishment. Periods in which the member is absent without authority shall be excluded in computing the period of limitation prescribed in this section.

Q. Whenever a punishment of forfeiture of pay is imposed under this section, the forfeiture shall not apply to pay accruing before the date that punishment is imposed, but only pay accruing on or after the date that punishment is imposed.

R. The Adjutant General may promulgate regulations prescribing the type and form of records to be kept of proceedings conducted pursuant to this section. The Adjutant General may promulgate any other regulations necessary to carry out the provisions of this section.

S. For purposes of this section, no member of the Oklahoma National Guard of the rank of E-8 or E-9 shall be reduced in rank pursuant to this section except when the reduction results from nonjudicial punishment imposed by an officer of the Oklahoma National Guard of the rank of Brigadier General or by the Adjutant General. When imposing nonjudicial punishment on enlisted persons of the rank of E-7 or below, a ~~commander or~~ commanding officer in

~~charge who possesses the rank of colonel~~ may consider reduction in rank as a possible punishment.

SECTION 10. AMENDATORY Section 1, Chapter 390, O.S.L. 2025 (70 O.S. Supp. 2025, Section 14-140), is amended to read as follows:

Section 14-140. A. ~~This act~~ Sections 14-140 through 14-141 of this title shall be known and may be cited as the ~~"Oklahoma National Guard CareerTech Assistance~~ "Christopher A. Rau Act".

B. As used in ~~this act~~ the Christopher A. Rau Act:

1. "Technology center school" means a technology center school under the governance of the State Board of Career and Technology Education;

2. "Eligible Guard member" means a current member of the Oklahoma National Guard in good standing who has a high school diploma or who has completed General Educational Development (GED) requirements and who has enrolled in a technology center school; and

3. "Program" means the Oklahoma National Guard CareerTech Assistance Program established pursuant to the provisions of this section.

C. 1. There is hereby created the Oklahoma National Guard CareerTech Assistance Program to provide assistance to eligible Guard members who enroll in a technology center school. Subject to the availability of funds, the amount of assistance shall be equivalent to the amount of tuition for a career and technology program in which the eligible Guard member is enrolled leading to certification or licensure, not to exceed a maximum of three (3) years.

2. Assistance provided pursuant to this section shall be granted without any limitation other than the amount of funds available for the program and the number of eligible Guard members who apply, subject to any cap established by the Military Department of the State of Oklahoma.

3. Assistance allowed by this section shall not be allowed for courses taken in excess of the requirements for completion of a technology center school program leading to certification or licensure.

D. Assistance provided pursuant to this section shall be allocated to the technology center school from the Oklahoma National Guard CareerTech Assistance Revolving Fund created pursuant to Section ~~2~~ 14-141 of this ~~act~~ title.

~~E. To be eligible to apply for the program, an eligible Guard member shall:~~

~~1. Have at least one (1) year remaining on his or her enlistment contract at the beginning of any semester for which the member applies for assistance pursuant to this section;~~

~~2. Agree in writing to complete his or her current service obligation in the Oklahoma National Guard; and~~

~~3. Agree in writing to serve actively in good standing with the Oklahoma National Guard for not less than twenty-four (24) months after completion of the last semester for which the member receives assistance pursuant to this section.~~

~~F.~~ To retain eligibility for the program, an eligible Guard member shall:

1. Maintain good academic standing and satisfactory progress according to the standards of the technology center school in which the member is enrolled;

2. Maintain the requirements for retention and completion as established by the technology center school in which the member is enrolled;

3. Maintain a minimum grade point of average of 2.0 on a 4.0 scale;

4. Maintain satisfactory participation in the Oklahoma National Guard; and

5. Possess a Military Occupational Specialty (MOS) or Air Force Specialty Code (AFSC) after his or her first semester.

~~G.~~ F. An eligible Guard member seeking assistance pursuant to the provisions of this section shall submit an application on a form prescribed by the Military Department of the State of Oklahoma to the Educational Service Office of the Military Department prior to the semester for which assistance is sought. The eligible Guard

member's ~~Commander~~ commander or his or her designee shall confirm a member's standing and eligibility to the technology center school in which the student is enrolled. The Military Department may establish a cap on the number of eligible Guard members allowed to participate per semester per technology center school program.

~~H.~~ G. The eligible Guard member's ~~Commander~~ commander may deny an application submitted by an eligible Guard member for continued program assistance if he or she fails to comply with the provisions of paragraph 1, 2, 3, 4, or 5 of subsection ~~F~~ E of this section.

~~I. An eligible Guard member seeking assistance pursuant to this section who is eligible for federal education benefits for vocational training shall exhaust all such federal benefits, when available, first.~~

~~J.~~ H. An eligible Guard member who has received program assistance pursuant to the provisions of this section and who fails to comply with the provisions of paragraph 4 of subsection ~~F~~ E of this section shall be required to repay an amount to be calculated as follows:

1. Determine the total amount of assistance provided pursuant to the provisions of this section;

2. Divide the amount determined in paragraph 1 of this subsection by twenty-four (24); and

3. Multiply the amount determined in paragraph 2 of this subsection by the number of months the member did not fulfill the requirements of paragraph 4 of subsection ~~F~~ E of this section. Repayments shall be deposited into the Oklahoma National Guard CareerTech Assistance Revolving Fund created pursuant to Section ~~2~~ 14-141 of this ~~act~~ title.

~~K.~~ I. An eligible Guard member who has received program assistance pursuant to the provisions of this section and who fails to comply with the provisions of paragraph 4 of subsection ~~F~~ E of this section due to hardship circumstances may request a waiver from repayment. A waiver request shall be submitted in writing to the Adjutant General.

~~L.~~ J. By July 1 annually, the State Board of Career and Technology Education shall notify the Adjutant General of the amount of funding available in the Oklahoma National Guard CareerTech

Assistance Revolving Fund created pursuant to Section ~~2~~ 14-141 of this ~~act~~ title.

~~M.~~ K. The State Board of Career and Technology Education shall promulgate rules to implement the provisions of ~~this act~~ the Christopher A. Rau Act including deadlines for submission of applications required by subsection ~~G~~ F of this section. The Military Department of the State of Oklahoma shall promulgate regulations pertaining to the application process and the determination of eligibility for the program. The Board and the Department shall coordinate the promulgation of rules and regulations, respectively. ~~The Adjutant General may promulgate regulations to implement the provisions of this act~~

L. An eligible Guard member seeking assistance pursuant to this section who is eligible for federal education benefits for vocational training or higher education shall first exhaust all such federal benefits, subject to availability.

SECTION 11. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 14-140.1 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Subject to the provisions of this section, the Adjutant General may permit a qualifying member, as described in Section 271 of Title 44 of the Oklahoma Statutes, to elect to transfer benefits to one or more of his or her dependents. The Adjutant General may promulgate any rules necessary to carry out the provisions of this act.

B. The following requirements shall be met in order to qualify for the transfer of benefits:

1. Complete at least six (6) years of service by the date the request is approved;
2. Agree to add four (4) or more years of service; or
3. Have twenty (20) or more years of service.

C. The spouse of a qualifying member may use the benefits if the qualifying member is on active duty or separated from service.

D. A dependent child of the qualifying member may start to use the benefits once transferred if:

1. The child has received a high school diploma or equivalent or the child is at least eighteen (18) years of age; and

2. The child is less than twenty-six (26) years of age.

SECTION 12. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3231.1 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Subject to the provisions of this section, the Adjutant General may permit a qualifying member described in Section 271 of Title 44 of the Oklahoma Statutes who is entitled to education assistance to elect to transfer to one or more of the dependents specified in this section a portion of such individual's entitlement to such assistance, subject to the limitations set forth in subsection D of this section.

B. The following requirements shall be met in order to qualify:

1. The recipient completes at least six (6) years of service by the date the request is approved, subject to paragraph 4 of this subsection;

2. The recipient agrees to add four (4) or more years of service, subject to paragraph 4 of this subsection;

3. The transferring recipient is enrolled in the Defense Enrollment Eligibility Reporting System; and

4. The service requirements in paragraphs 1 and 2 of this subsection shall not apply if the qualifying member is a Purple Heart recipient but such recipient shall request to transfer benefits while still on active duty.

C. The spouse of a qualifying member may use the benefits whether the member is on active duty or separated from service under the following provisions:

1. If the member separated from active duty before January 1, 2013, the spouse may use the benefits for up to fifteen (15) years after the member's separation from active duty; and

2. If the member separated from active duty on or after January 1, 2013, the spouse may use the benefits at any time with no time limitations.

D. A dependent child of the qualifying member may start to use the benefits after the member has completed at least ten (10) years of service and such benefits may be used while on active duty or after separation from service under the following provisions:

1. The child has received a high school diploma or equivalent or the child is at least eighteen (18) years of age; and

2. The child is less than twenty-six (26) years of age.

SECTION 13. RECODIFICATION Section 1, Chapter 390, O.S.L. 2025 (70 O.S. Supp. 2025, Section 14-140), as amended by Section 10 of this act, shall be recodified as Section 14-140A of Title 70 of the Oklahoma Statutes, unless there is created a duplication in numbering.

SECTION 14. This act shall become effective November 1, 2026.

Passed the House of Representatives the 5th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____